

Nandanam Nagaraju vs The State Of Andhra Pradesh on 14 October, 2019

Author: M. Satyanarayana Murthy

Bench: M. Satyanarayana Murthy

THE HON'BLE SRI JUSTICE M. SATYANARAYANA MURTHY

Criminal Petition No.4926 of 2019

ORDER:

This petition under Section 482 of Criminal Procedure Code is filed to quash the proceedings in F.I.R/Crime No.204 of 2018 of Vetapalem Police Station, Prakasam District, registered for the offence punishable under Sections 354D, 509, 506 IPC on the file of I Additional Junior Civil Judge, Chirala.

2. The 2nd respondent lodged a report to the police alleging that she completed her B.Tech., and preparing for GATE entrance examination. Her cousin by name Nagaraju, S/o Sambasivarao, R/o Gujjanagunla, Guntur said that he will marry her and started sending abusive messages to her whatsapp number, so, she blocked his number. She did not inform this to her parents as disputes may arise within their family. Later, Nagaraju called her uncle and informed that he wanted to marry her and told him to inform her to respond to his calls, her uncle reprimanded him and informed to her parents, and his parents said that they will reprimand him. Even then, he did not change his attitude and sent a whatsapp message to her father that he laid a venture and named it as Nandam Nagamallika, and again her father informed to his parents. Again their parents said that they will reprimand him. Even on 20-11-2018 at about 10.00 AM Nagaraju called her from another number and said "Andhe lanja nannu pellichesukomani ennisarlu bedirinchali" if she did not marry him he will morph her photos and put vulgar messages in the internet and threatened her.

3. On the basis of this report dated 21-11-2018 the police registered the above crime and issued FIR for the offences preferred above.

4. The present petition is filed under Section 482 Cr.P.C raising various grounds mainly on the ground that there are civil disputes between the two families and this complaint was lodged to convert the civil disputes into criminal disputes and that there is no truth in the allegations made against this petitioner. It is further contended that no material is collected as on date and the allegations made in the complaint do not constitute any offence including the offence punishable under Section 354D and prayed to quash the proceedings against this petitioner.

5. During the course of hearing the learned counsel for petitioner Sri Narra Srinivasa Rao would contend that the crime was registered on 21-11-2018 and issued F.I.R, till date no material was collected by the investigating agency to connect this petitioner with the offences punishable under

Sections 354D, 506 and 509 IPC, in the absence of any material proceeding against the petitioner to investigate into the case will cause much prejudice and disrepute in the public and requested to quash the proceedings against this petitioner.

6. The learned Public Prosecutor for the State of Andhra Pradesh contended that so far five witnesses were examined during investigation and the statement of L.W.4 the victim girl is suffice to conclude prima facie that the petitioner committed an offence punishable under Section 354D and the investigation is in the midway. Hence, the proceedings cannot be quashed at this stage during the pendency of the investigation and requested to pass an appropriate order.

7. It is an admitted fact that the 2nd respondent lodged a complaint with the police. The allegations made in the complaint would disclose that the petitioner threatened her to morph her photos and post some in the internet while abusing her in filthy language if she refused to marry him and following her despite of the disinclination to marry would attract prima-facie to Section 354D, abusing her in filthy language while threatening her to morph her photos and post in the internet would attract the offence punishable under Sections 506 and 509 IPC prima facie.

8. Therefore, the proceedings cannot be quashed at this stage on the ground that no material produced along with the complaint lodged with the police. The report is only information to police about the commission of cognizable offence to set in criminal law into motion. The statement of L.W.4 the victim girl recorded by the police is sufficient prima facie constitute the offence punishable under Sections 354D, 506 and 509 IPC.

9. The contention of the counsel for the petitioner is that one year is almost elapsed but the investigating agency has not secured any material, particularly the messages sent by the petitioner to the defacto-complainant, the 2nd respondent herein, by itself is not a ground at this stage when the investigation is in the midway and the Apex Court time and again held that the Court cannot quash the proceedings. In *State of Orissa v. Saroj Kumar Sahoo*¹, the Supreme Court held that the inherent powers under Section 482, Cr. P.C. should not be exercised by the High Court to stifle a legitimate prosecution. The High Court, being the highest Court of a State should normally refrain from giving a prima facie decision in a case where the entire facts are incomplete and hazy, more so when the evidence has not been collected and produced before the Court and the issues involved, whether factual or legal, are of magnitude and cannot be seen in their true perspective without sufficient material. Of course, no hard and fast rule can be laid down in regard to cases in which the High Court will exercise its extraordinary jurisdiction of quashing the proceeding at any stage. While exercising jurisdiction under Section 482 of the Cr.P.C., it is not permissible for the Court to act as if it was a trial court. Even when charge is framed at that stage, the Court has to only prima facie be satisfied about existence of sufficient ground for proceeding against the accused. For that limited purpose, the Court can evaluate material and documents on records but it cannot appreciate evidence. The Court is not required to appreciate evidence to conclude whether the materials produced are sufficient or not for convicting the accused. Similarly in "*Kurukshetra University v. State Of Haryana*"² the Apex Court reiterated the same principle. The law declared by the Apex Court in the two judgments, made it clear that normally the Court will not interdict with the process of law and cannot quash the proceedings when the (2005) 13 SCC 540 AIR 1977 SC 2229 investigation is

not yet commenced, more particularly when the allegations made in the complaint discloses commission of offence or allegation to constitute the offence punishable under any penal law.

10. In view of the law declared by the Apex Court, normally the Court shall not quash the proceedings when the investigation is not yet commenced. In the recent judgment of the Apex Court in State of Tamil Nadu v. S. Martin and others³, the Hon'ble Apex Court, while considering the guidelines issued by the Apex Court in State of Haryana v. Bhajan Lal⁴ held that when the investigation is not yet commenced, based on the allegations made in the F.I.R, the proceedings cannot be quashed.

11. In view of the law declared by the Apex Court in the judgments referred supra, it is difficult for me to accept the contention of the Counsel for the petitioner and quash the proceedings at this stage, more particularly, when investigation is at foetus stage. Hence, I find no ground to quash the proceedings and consequently, the petition is liable to be dismissed. However the petitioner is at liberty to renew his application at appropriate stage.

With the above observation, the petition is dismissed at the stage of admission.

JUSTICE M. SATYANARAYANA
MURTHY Date: 14-10-2019 IS AIR 2018 SC 1647 1992 Supp (1) SCC 335 THE HON'BLE SRI
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